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Case Number: 24STCV26058 Hearing Date: June 23, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

LARA KUSEZ

, et al.;

Plaintiffs,

vs.

STEPS APPAREL GROUP, INC.

, et al.,

Defendants.

Case

No.:

24STCV26058

Hearing

Date:

June

23, 2026

Time:

10:00 a.m.

[Tentative]

Order RE:

plaintiffs lara kusez (aka lara ghraoui) and

kari riley's motion for summary judgment against defendant steps apparel

group, inc. d/b/a SKIES ARE

BLUE

MOVING PARTIES:

Plaintiffs Lara Kusez (aka Lara Ghraoui) and Kari Riley

RESPONDING PARTY: Defendant Steps Apparel Group, Inc. d/b/a

Skies Are Blue

Motion for Summary Judgment

The court considered the moving, opposition, and reply papers filed in

connection with this motion.

On October 7, 2024, plaintiffs Lara Kusez (aka Lara Ghraoui) ("Kusez")

and Kari Riley ("Riley") (collectively, "Plaintiffs") filed the Complaint against defendant Steps Apparel Group, Inc. d/b/a Skies Are Blue ("Defendant") for (1) first count of waiting time penalties under Labor Code section 203 for Employment on April 29, 2022, by plaintiff Kari Riley, (2) second count of waiting time penalties under Labor Code section 203 for Employment on September 30, 2022, by plaintiff Kari Riley, (3) third count of waiting time penalties under Labor Code section 203 for Employment on November 14, 2022, by plaintiff Kari Riley, (4) fourth count of waiting time penalties under Labor Code section 203 for Employment on December 8, 2022, by plaintiff Kari Riley, (5) fifth count of waiting time penalties under Labor Code section 203 for Employment on March 14, 2023, by plaintiff Kari Riley, and (6) sixth count of waiting time penalties under Labor Code section 203 for Employment on April 18, 2023, by plaintiff Lara Kusez.

On October 2, 2025, Plaintiffs dismissed the third count without prejudice.

EVIDENTIARY OBJECTIONS

The court rules on Plaintiff's evidentiary objections as follows:

The court sustains Objections Nos. 1, 7.

The court overrules Objections Nos. 2-6, 8-24.

LEGAL STANDARD

The purpose of a motion for summary judgment or summary

adjudication "is to provide courts with a mechanism to cut through the parties'

pleadings in order to determine whether, despite their allegations, trial is in

fact necessary to resolve their dispute."

(Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil

Procedure section 437c, subdivision (c), requires the trial judge to grant

summary judgment if all the evidence submitted, and 'all inferences reasonably

deducible from the evidence' and uncontradicted by other inferences or

evidence, show that there is no triable issue as to any material fact and that

the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7

Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on

the moving party to make a prima facie showing that there are no triable issues

of material fact." (Scalf v. D.B.

Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) For the purposes of motion for summary

judgment and summary adjudication, "[a] plaintiff or cross-complainant has met

his or her burden of showing that there is no defense to a cause of action if

that party has proved each element of the cause of action entitling the party

to judgment on the cause of action."

(Code Civ. Proc., § 437c, subd. (p)(1).)

“Once the plaintiff . . . has met that burden, the burden shifts to the

defendant . . . to show that a triable issue of one or more material facts

exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(1).) “When deciding whether to grant summary

judgment, the court must consider all of the evidence set forth in the papers

(except evidence to which the court has sustained an objection), as well as all

reasonable inferences that may be drawn from that evidence, in the light most

favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical

Center (2008) 159 Cal.App.4th 463, 467; Code

Civ. Proc., § 437c, subd. (c).)

DISCUSSION

1. First

Count of Waiting Time Penalties Under Labor Code Section 203 for Employment on

April 29, 2022, by Plaintiff Kari Riley

The court finds that plaintiff Riley has met her burden of showing

that there is no defense to the first count of waiting time penalties under

Labor Code section 203 because plaintiff Riley has proved each element of waiting

time penalties under Labor Code section 203 entitling her to judgment on this

count. (Lab. Code, § 203, subd. (a), [“If

an employer willfully fails to pay . . . any wages of an employee who is

discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action therefor is commenced; but the wages shall not continue for more than 30 days”].)

First, plaintiff Riley has presented evidence to prove that she was hired by Defendant through her talent agency, Elite Model Management LLC (“Elite”) for a photography shoot conducted in Los Angeles for the production of photographs for the use in the marketing of Defendant’s products and/or services on April 29, 2022 (“April 29, 2022 Photoshoot”) and thus she was entitled

to receive payment of wages earned and unpaid at the time of termination by the

next regular payday as a print shoot employee. (Undisputed Material Fact (“UMF”) nos. 3-8.) (Lab. Code, § 201.6, subds. (a)(1), (b).) Second, plaintiff Riley has presented evidence

that the April 29, 2022 Photoshoot was completed on April 29, 2022. (UMF no. 9.) Third, plaintiff Riley has presented evidence

to prove that Defendant’s “next regular payday” as defined in Labor Code

section 204 following April 29, 2022, was May 6, 2022. (UMF no.11.) (Lab. Code, § 204.) Fourth, plaintiff Riley has presented evidence

to prove that Defendant did not make payments to either plaintiff Riley or her

talent agency for plaintiff Riley’s services for the April 29, 2022 Photoshoot until

June 17, 2022. (UMF no. 12.) Thus, plaintiff Riley has met her burden to

show that there is no defense to the first count of waiting time penalties

under Labor Code section 203.

The court finds that Defendant has met its burden to show that a

triable issue of material fact exists as to whether Defendant willfully failed to pay plaintiff Riley because Defendant has shown it believed plaintiff Riley was not its employee but was an independent contractor. (Declaration of Chung Mee Yoon ("Yoon Decl."), ¶ 9, 12, 13, 15; Exhibit ("Exh.") A.) (Cal. Code Regs., tit. 8, § 13520 ["A willful failure to pay wages within the meaning of Labor Code Section 203 occurs when an employer intentionally fails to pay wages to an employee when those wages are due. However, a good faith dispute that any wages are due will preclude imposition of waiting time penalties under Section 203"]; Hill v. Walmart Inc. (9th Cir. 2022) 32 F.4th 811, 816 [applying California Labor Law and explaining "[i]t is undisputed that if Hill were an independent contractor, then she would not be an 'employee' entitled to an immediate payment of wages upon discharge pursuant to Labor Code § 201(a) or to recover penalties from Walmart pursuant to § 203"].) "A 'good faith dispute' that any wages are due occurs when an employer presents a defense, based in law or fact which, if successful, would preclude any recovery on the part of the employee. The fact that a defense is ultimately unsuccessful will not preclude a finding that a good faith dispute did exist. Defenses presented which, under all the circumstances, are unsupported by any evidence, are unreasonable, or are presented in bad faith, will preclude a finding of a 'good faith dispute.'" (Cal. Code Regs., tit. 8, § 13520, subd. (a).)

"[A] person providing labor or services for remuneration shall be

considered an employee rather than an independent contractor unless the hiring

entity demonstrates that all of the following conditions are satisfied: (A) The

person is free from the control and direction of the hiring entity in

connection with the performance of the work, both under the contract for the

performance of the work and in fact. (B)

The person performs work that is outside the usual course of the hiring

entity's business. (C) The person is

customarily engaged in an independently established trade, occupation, or

business of the same nature as that involved in the work performed." (Lab. Code, § 2775, subd. (b)(1).)

Defendant has presented the declaration of Chung Mee Yoon, who is

the Vice President of Defendant, and Yoon states that, all negotiations and

agreements are made with the modeling agencies, any changes or modifications to

the agreements can only be made with the modeling agencies, not with the model,

all billing and payment issues are handled between Defendant and the modeling agencies,

and Defendant is obligated to make payments for photoshoots to the modeling

agency who then pays its models for the photoshoot. (Yoon Decl., ¶¶ 13, 14.) After the agreement with the modeling agency

is completed and the model is booked, Defendant produces a call sheet that

provides details of the photoshoot to all vendors, including the date, time,

location, and identity of the participants in the photoshoot which Defendant assumes

each vendor forwards to the vendor's employee participating in the

photoshoot. (Yoon Decl., ¶ 10.) Thus, Defendant has shown that the agreements about each photoshoot are not between plaintiff Riley and Defendant, but rather between Defendant and Elite, and therefore, Defendant does not directly have the ability or right to control plaintiff Riley. (Lab. Code, § 2775, subd. (b)(1)(A).)

Furthermore, Defendant has shown that it is the photographers who instruct the models on what looks they are attempting to shoot and it is the hair and makeup stylists that create the appropriate looks for the models.[1]

(Yoon Decl., ¶ 8.) Yoon states that the hair and makeup artist may have instructions for models to assist in their tasks such as no makeup, no products in hair, or no nail treatments, all of which is within the purview of the hair and makeup stylists. (Yoon

Decl., ¶ 11.) Defendant's photoshoot coordinator

is present at the photoshoots to ensure all of the vendors are present, to supply the appropriate clothing, to ensure that each participant has everything they need, and to ensure that the photoshoot is in line with the theme of the mood board created by Defendant. (Yoon

Decl., ¶ 8.) Thus, Defendant has shown

that plaintiff Riley was free from the control and direction of Defendant in connection with the performance of the work in fact. (Lab. Code, § 2775, subd. (b)(1)(A).)

Defendant has shown that its work for over 30 years is women's

garment manufacturing and wholesaling.

(Yoon Decl., ¶ 4.) Defendant's

goods are shipped and sold to retailers located throughout the United States,

including brick and mortar stores and online retailers. (Yoon Decl., ¶ 5.) Some of Defendant's garments are sold through

United States retailers in the international market as well. (Yoon Decl., ¶ 5.) Thus, Defendant has shown that plaintiff

Riley's modeling is outside the usual course of Defendant's business of women's

garment manufacturing and wholesaling.

(Lab. Code, § 2775, subd. (b)(1)(B).)

Defendant contracts and hires outside vendors including,

photographers, hair and makeup artists, and models, to assist in photographing

Defendant's garments to create "look books" to showcase garments for each

season. (Yoon Decl., ¶ 6.) Defendant has shown that plaintiff Riley is engaged

in the independent established occupation of modeling because plaintiff Riley

is a model who provides her modeling services to other companies and she uses

modeling agencies to find work. (Hwang

Decl., Exh. D – plaintiff Riley's responses to Defendant's SROGs, no. 46; Hwang

Decl., Exh. A - Riley Depo. 14:21-15:12, 23:4-24:4, 25:19-26:11.) Thus, Defendant has shown that plaintiff Riley

is engaged in the independently established occupation of modeling, which was

the same work she performed for Defendant.

(Lab. Code, § 2775, subd. (b)(1)(C).)

Defendant has also shown that Defendant did not believe plaintiff

Riley was an employee because plaintiff Riley never signed an employment

contract, never provided Defendant with an employment application, a completed

W-4 or USCIS I-9, or any emergency contact information or other personal

contact information, never negotiated with Defendant prior to a modeling shoot,

was never onboarded with Defendant, never met with Defendant's Human Resources,

was not provided with employee handbooks, and never reviewed any of Defendant's

employee policies and procedures. (Yoon

Decl., ¶¶ 33, 35; Declaration of Henry Hwang ("Hwang Decl."), Exh. A – Riley

Depo. 42:13-45:6.)

The court finds that Defendant has shown that a triable issue of

material facts exists as to whether there are reasonable grounds for Defendant

to believe that plaintiff Riley was an independent contractor, which is

sufficient for a good-faith dispute.

In addition, Defendant has shown that it did not willfully fail to

pay plaintiff Riley because Defendant was waiting for Elite to send the correct

invoice prior to remitting payment. Yoon

states that, on April 21, 2022, Defendant entered into negotiations with Elite,

they entered into an agreement for Elite to provide plaintiff Riley as a model

for Defendant, and Defendant received an invoice from Elite for the April 29,

2022 Photoshoot on May 5, 2022, but because it was addressed to a different entity, Elite provided Defendant with a revised invoice on June 16, 2022, though the invoice date was not revised. (Yoon Decl., ¶¶ 15-16; Exh. A-C.) Yoon states that, on June 16, 2022, Defendant issued and sent a check to Elite in the amount of \$3,000.00 as payment for the invoice. (Yoon Decl., ¶ 17, Exh. D.)

The court denies summary adjudication as to the first count of waiting time penalties under Labor Code section 203 for employment on April 29, 2022, by plaintiff Riley.

2. Second

Count of Waiting Time Penalties Under Labor Code Section 203 for Employment on September 30, 2022 and October 5, 2022, by Plaintiff Kari Riley

The court finds that plaintiff Riley has met her burden of showing that there is no defense to the second count of waiting time penalties under Labor Code section 203 because plaintiff Riley has proved each element of waiting time penalties under Labor Code section 203 entitling her to judgment on this count.

First, plaintiff Riley has presented evidence to prove that she was hired by Defendant through her talent agency, Elite, for a photography shoot conducted in Los Angeles for the production of photographs for the use in the marketing of Defendant's products and/or services on September 30, 2022 and

October 5, 2022, ("September 30, 2022 and October 5, 2022 Photoshoot") and thus

she was entitled to receive payment of wages earned and unpaid at the time of

termination by the next regular payday as a print shoot employee. (UMF nos. 15-20.) (Lab. Code, § 201.6, subd. (b).) Second, plaintiff Riley has presented evidence

that the September 30, 2022 and October 5, 2022 Photoshoot was completed on October

5, 2022. (UMF no. 21.) Third, plaintiff Riley has presented evidence

to prove that Defendant's "next regular payday" as defined in Labor Code

section 204 following October 5, 2022, was October 21, 2022. (UMF no. 23.) (Lab. Code, § 204.) Fourth, plaintiff Riley has presented evidence

to prove that Defendant did not make payments to either plaintiff Riley or her

talent agency for plaintiff Riley's services for the September 30, 2022 and

October 5, 2022 Photoshoot until October 26, 2022. (UMF no. 24.) Thus, plaintiff Riley has met her burden to

show that there is no defense to the second count of waiting time penalties

under Labor Code section 203.

As discussed above, Defendant has met its burden to show that a

triable issue of material fact exists as to whether Defendant willfully failed

to timely pay plaintiff Riley because Defendant has shown there is a good-faith

dispute as to whether plaintiff Riley was not its employee but was an

independent contractor since Defendant negotiated directly with Elite,

Defendant is in the women's garment manufacturing and wholesaling business and

not the modeling business, plaintiff Riley models for different companies

through modeling agencies, and plaintiff Riley did not provide the documents and

did not undergo the necessary procedures to be employed with Defendant. (Yoon Decl., ¶¶ 4, 5, 8-10, 12-15, 33, 35;

Hwang Decl., Exh. A – Riley Depo. 14:21-15:12, 23:4-24:4, 25:19-26:11, 42:13-45:6.)

Defendant also attempts to show that

it did not fail to timely pay plaintiff Riley because Defendant's next regular

pay day was October 26, 2022, the day Defendant paid Elite. However, in its responses to plaintiff Riley's

Special Interrogatories, Defendant stated that its next regular paydays between

October 5, 2022 and November 5, 2022 were "October 7, 14, 21, 28, November 4." (Declaration of Timothy A. Hall ("Hall

Decl."), Exh. S – Defendant's responses to Riley's SROGs, no. 14.) In addition, Labor Code section 204 states

that the employer designates the regular paydays in advance within the

parameters provided by the section, "Labor performed between the 1st and 15th

days, inclusive, of any calendar month shall be paid for between the 16th and

the 26th day of the month during which the labor was performed, and labor

performed between the 16th and the last day, inclusive, of any calendar month,

shall be paid for between the 1st and 10th day of the following month." (Lab. Code, § 204, subd. (a).) Thus, the paydays that Defendant designated as

regular paydays were October 7, 14, 21, 28, and November 4, and because the

September 30, 2022 and October 5, 2022 Photoshoot ended on October 5, 2022, the

next regular payday as designated by Defendant and conforming to Labor Code

section 204 was October 21, 2022. Thus,

Defendant's payment on October 26, 2022, is not sufficient to raise a triable

issue of material fact.

The court denies summary

adjudication as to the second count of waiting time penalties under Labor Code

section 203 for employment on September 30, 2022 and October 5, 2022, by

plaintiff Riley.

3. Fourth

Count of Waiting Time Penalties Under Labor Code Section 203 for Employment on

December 8, 2022, by Plaintiff Kari Riley

The court finds that plaintiff Riley has not met her burden of

showing that there is no defense to the fourth count of waiting time penalties

under Labor Code section 203 because Plaintiff has not proved that she was not

paid on Defendant's next regular payday as Defendant's next regular payday as

defined in Labor Code section 204 following December 8, 2022, was December 23,

2022. (UMF no. 35.) (Lab. Code, § 204.) Plaintiff Riley has presented evidence that

shows Defendant made a payment for the December 8, 2022 Photoshoot on December

22, 2022. (UMF no. 36.)

The court denies summary adjudication as to the fourth count of

waiting time penalties under Labor Code section 203 for employment on December

8, 2022, by plaintiff Riley.

4. Fifth

Count of Waiting Time Penalties Under Labor Code Section 203 for Employment on

March 14, 2023, by Plaintiff Kari Riley

The court finds that plaintiff Riley has met her burden of showing

that there is no defense to the fifth count of waiting time penalties under

Labor Code section 203 because plaintiff Riley has proved each element of

waiting time penalties under Labor Code section 203 entitling her to judgment

on this count.

First, plaintiff Riley has presented evidence to prove that she

was hired by Defendant through her talent agency, Elite, for a photography

shoot conducted in Los Angeles for the production of photographs for the use in

the marketing of Defendant's products and/or services on March 14, 2023 ("March

14, 2023 Photoshoot") and thus she was entitled to receive payment of wages

earned and unpaid at the time of termination by the next regular payday as a

print shoot employee. (UMF nos. 39-45.) (Lab. Code, § 201.6, subd. (b).) Second, plaintiff Riley has presented evidence

that the March 14, 2023 Photoshoot was completed on March 14, 2023. (UMF no. 45.) Third, plaintiff Riley has presented evidence

to prove that Defendant's "next regular payday" as defined in Labor Code

section 204 following March 14, 2023, could have been either March 17, 2023, or

March 24, 2023. (UMF no. 47.) (Lab. Code, § 204.) Fourth, plaintiff Riley has presented evidence

to prove that Defendant did not make payments to either plaintiff Riley or her

talent agency for plaintiff Riley's services for the March 14, 2023 Photoshoot

until April 7, 2023. (UMF no. 48.) Thus, plaintiff Riley has met her burden to

show that there is no defense to the fifth count of waiting time penalties

under Labor Code section 203.

As discussed above, Defendant has met its burden to show that a

triable issue of material fact exists as to whether Defendant willfully failed

to timely pay plaintiff Riley because Defendant has shown there is a good-faith

dispute as to whether plaintiff Riley was not its employee but was an

independent contractor since Defendant negotiated directly with Elite,

Defendant is in the women's garment manufacturing and wholesaling business and

not the modeling business, plaintiff Riley models for different companies

through modeling agencies, and plaintiff Riley did not provide the documents and

did not undergo the necessary procedures to be employed with Defendant. (Yoon Decl., ¶¶ 4, 5, 8-10, 12-15, 33, 35;

Hwang Decl., Exh. A – Riley Depo. 14:21-15:12, 23:4-24:4, 25:19-26:11,

42:13-45:6.)

The court denies summary adjudication as to the fifth count of

waiting time penalties under Labor Code section 203 for employment on March 14,

2023, by plaintiff Riley.

5. Sixth Count of Waiting Time Penalties Under

Labor Code Section 203 for Employment on April 18, 2023, by Plaintiff Lara

Kusez

The court finds that plaintiff Kusez has not met her burden of

showing that there is no defense to the sixth count of waiting time penalties

under Labor Code section 203 because Plaintiff has not shown that she was not

paid on Defendant's next regular payday as Defendant's next regular payday as

defined in Labor Code section 204 following April 18, 2023, was May 5, 2023. (UMF no. 61.) (Lab. Code, § 204.) Plaintiff Riley has presented evidence that

shows Defendant made a payment for the April 18, 2023 Photoshoot on May 5, 2023.

(UMF no. 62.)

The court denies summary adjudication as to the sixth count of

waiting time penalties under Labor Code section 203 for employment on April 18,

2023, by plaintiff Kusez.

6. Conclusion

For the reasons set forth above, the court finds that (1) plaintiff

Riley has met her burden to show that there is no defense to the first, second,

and fifth counts of waiting time penalties under Labor Code section 203 because

plaintiff Riley proved each element of waiting time penalties under Labor Code

section 203, and (2) defendant Steps Apparel Group, Inc. has met its

burden to show that a triable issue of material fact exists as to its

willfulness to not timely pay plaintiff Riley because there is a good-faith

dispute that defendant Steps Apparel Group, Inc. considered plaintiff Riley to be an independent contractor.

The court also finds that plaintiff Riley did not meet her burden to show there is no defense to the fourth count of waiting time penalties under Labor Code section 203 because plaintiff Riley failed to show that defendant Steps Apparel Group, Inc. did not timely pay for her services and that plaintiff Kusez did not meet her burden to show there is no defense to the sixth count of waiting time penalties under Labor Code section 203 because plaintiff Kusez failed to show that defendant Steps Apparel Group, Inc. did not timely pay for her services.

Thus, the court finds that all the papers submitted show that there is a triable issue as to the material fact of whether defendant Steps Apparel Group, Inc.'s actions were willful and whether defendant Steps Apparel Group, Inc. timely paid for plaintiffs Kari Riley and Lara Kusez's services. The court therefore finds that plaintiffs Kari Riley and Lara Kusez are not entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

The court therefore denies plaintiffs Kari Riley and Lara Kusez's motion for summary judgment.

ORDER

The court denies plaintiffs Kari Riley and Lara Kusez's motion for summary

judgment on the Complaint.

The court orders defendant Steps Apparel Group, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 23, 2026

Robert

B. Broadbelt III

Judge

of the Superior Court

[1]

Plaintiff Riley asserts that it was Defendant's representatives who instructed her on what to wear, what to do, where to stand, and where to look, and these representatives exercised complete control over the conduct of the photoshoot and had the right to control and direct every aspect of the performances of all other photoshoot participants as well as herself. (Declaration of Kari Riley, ¶ 9.) Although this weighs against a determination that plaintiff Riley was an independent contractor, Defendant's conflicting testimony is sufficient to show that a triable issue of material fact exists as to whether Defendant controlled plaintiff Riley's modeling.